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THE HARYANA AND UTTAR PRADESH (ALTERATION OF BOUNDARIES) ACT, 1979

ACT NO. 31 OF 1979

[11*th June,* 1979.]

An Act to provide for the alteration of boundaries of the States of Haryana and Uttar Pradesh and for matters connected therewith.

BE it enacted by Parliament in the Thirtieth Year of the Republic of India as follows:—

PART I

PRELIMINARY

1. Short title.—This Act may be called the Haryana and Uttar Pradesh (Alteration of Boundaries) Act, 1979.

2. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "appointed day" means the day which the Central Government may, by notification in the Official Gazette, appoint;

(*b*) "assembly constituency", "council constituency" and "parliamentary constituency" have the same meanings as in the Representation of the People Act, 1950 (43 of 1950);

(*c*) "fixed boundaries" means the boundaries demarcated under the provisions of section 3;

(*d*) "law" includes any enactment, Ordinance, regulation, order, bye-law, rule, scheme, notification or other instrument having the force of law in the whole or in any part of the State of Haryana or Uttar Pradesh;

(*e*) "notified order" means an order published in the Official Gazette;

(*f*) "prescribed" means prescribed by rules made under this Act;

(*g*) "present deep stream line" means the deep stream line of the river-Yamuna as verified and determined by the Survey of India during the months of November, 1974, December, 1974, January, 1975 and February, 1975;

(*h*) "sitting member", in relation to either House of Parliament or of the Legislature of a State, means a person who immediately before the appointed day is a member of that House;

(*i*) "transferred territories" means,—

(*a*) in relation to the State of Haryana, the territories transferred by this Act from that State to the State of Uttar Pradesh, and

(*b*) in relation to the State of Uttar Pradesh, the territories transferred by this Act from that State to the State of Haryana;

(*j*) any reference to a district of a State shall be construed as a reference to the area physically comprised within that district immediately before the appointed day.

PART II

ALTERATION OF BOUNDARIES

3. Replacement of fluctuating boundaries by fixed boundaries.—(*1*) As from the appointed day, the boundary between the Karnal and Sonepat districts of the State of Haryana and the Saharanpur, Muzaffarnagar and Meerut districts of the State of Uttar Pradesh and the boundary between the Gurgaon district of the State of Haryana and the Bulandshahr and Aligarh districts of the State of Uttar Pradesh which at present is the deep stream of the river-Yamuna, shall be altered to and replaced by fixed boundaries.

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(*2*) The said fixed boundaries shall be demarcated by an authority appointed in this behalf by the Central Government so as to be generally in conformity with the fixed boundaries described in the Schedule.

(*3*) For the purposes of such demarcation,—

(*a*) the decision of the said authority on any matter relating to the interpretation of any part of the description of the fixed boundary given in the Schedule shall be final;

(*b*) the said authority shall have power to determine the location of the points at which the boundary pillars shall be constructed and to specify the State Government which shall be responsible for the construction and maintenance of the boundary pillars at such points according to such specifications as that authority may indicate (the pillars of the same specifications being apportioned, as far as practicable, equally between the two State Governments), the decision of the said authority in regard to these matters being final;

(*c*) it shall be lawful for the said authority and for any person specified by such authority to enter upon and survey any area in the vicinity of any of the fixed boundaries described in the Schedule and to do all other acts as may be necessary.

(*4*) The authority referred to in sub-section (*2*) shall also prepare maps of the areas on both sides of the fixed boundaries and in the vicinity thereof showing—

(*a*) the present deep stream line and the fixed boundary in relation to it; and

(*b*) the names and boundaries of the villages on both sides of the fixed boundary as indicated by the State Government concerned with reference to the revenue records of that Government,

and send authenticated copies thereof to the Central Government and to the State Governments of Haryana and Uttar Pradesh.

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4. Transfer of territories.—(*1*) As from the appointed day,—

(*a*) there shall be added to the State of Haryana all the territories of the State of Uttar Pradesh which lie on the Haryana side of the fixed boundaries, and the said territories shall thereupon cease to form part of the State of Uttar Pradesh; and

(*b*) there shall be added to the State of Uttar Pradesh all the territories of the State of Haryana which lie on the Uttar Pradesh side of the fixed boundaries, and the said territories shall thereupon cease to form part of the State of Haryana.

(*2*) Each of the State Governments of Haryana and Uttar Pradesh shall, by order in the Official Gazette of the State, provide for the administration, as from the appointed day, of the territories transferred to that State under sub-section (*1*) by including them or any part of them in such district, sub-division, police-station or other administrative unit as may be specified in the order.

5. Amendment of First Schedule to the Constitution.—As from the appointed day, in the First Schedule to the Constitution, under the heading "I. THE STATES"—

(*a*) for the entry against "13. Uttar Pradesh", the following shall be substituted, namely:—

"The territories which immediately before the commencement of this Constitution were either comprised in the Province known as the United Provinces or were being administered as if they formed part of that Province, the territories specified in clause (*b*) of sub-section (*1*) of section 3 of the Bihar and Uttar Pradesh (Alteration of Boundaries) Act, 1968 (24 of 1968) and the territories specified in clause (*b*) of sub-section (*1*) of section 4 of the Haryana and Uttar Pradesh (Alteration of Boundaries) Act, 1979, but excluding the territories specified in clause (*a*) of sub-section (*1*) of section 3 of the Bihar and Uttar Pradesh (Alteration of Boundaries) Act, 1968, and the territories specified in clause (*a*) of sub-section (*1*) of section 4 of the Haryana and Uttar Pradesh (Alteration of Boundaries) Act, 1979 (31 of 1979).";

(*b*) for the entry against "17. Haryana", the following shall be substituted, namely:—

"The territories specified in sub-section (*1*) of section 3 of the Punjab Reorganisation Act, 1966 and the territories specified in clause (*a*) of sub-section (*1*) of section 4 of the Haryana and Uttar Pradesh (Alteration of Boundaries) Act, 1979 (31 of 1979), but excluding the territories specified in clause (*b*) of sub-section (*1*) of section 4 of that Act.".

PART III

REPRESENTATION IN THE LEGISLATURES

6. Construction of delimitation orders.—As from the appointed day, any reference in any order relating to delimitation of parliamentary constituencies, assembly constituencies or council constituencies—

(*a*) (*i*) to the State of Haryana, shall be construed as including the territories transferred to that State from the State of Uttar Pradesh under clause (*a*) of sub-section (*1*) of section 4, but excluding the territories transferred from the State of Haryana to the State of Uttar Pradesh under clause (*b*) of that sub-section;

(*ii*) to any district, sub-division, police-station or other administrative unit in the State of Haryana, shall be construed as including that part of the territories, if any, transferred to that State, which is included in that district, sub-division, police station or other administrative unit by order made under sub-section (*2*) of section 4;

(*b*) (*i*) to the State of Uttar Pradesh, shall be construed as including the territories transferred to that State from the State of Haryana under clause (*b*) of sub-section (*1*) of section 4, but excluding the territories transferred from the State of Uttar Pradesh to the State of Haryana under clause (*a*) of that sub-section;

(*ii*) to any district, sub-division, police-station or other administrative unit in the State of Uttar Pradesh, shall be construed as including that part of the territories, if any, transferred to that State, which is included in that district, sub-division, police-station or other administrative unit by order made under sub-section (*2*) of section 4.

7. Provision as to sitting members.—(*1*) Every sitting member of the House of the People representing any parliamentary constituency the extent of which has been altered by virtue of the provisions of this Act shall, notwithstanding such alteration, be deemed, as from the appointed day, to have been elected to that House by that constituency as so altered.

(*2*) Every sitting member of the Legislative Assembly of the State of Haryana or Uttar Pradesh representing any assembly constituency the extent of which has been altered by virtue of the provisions of this Act shall, notwithstanding such alteration, be deemed, as from the appointed day, to have been elected to the said Legislative Assembly by that constituency as so altered.

(*3*) Every sitting member of the Legislative Council of the State of Uttar Pradesh representing any council constituency the extent of which has been altered by virtue of the provisions of this Act shall, notwithstanding such alteration, be deemed, as from the appointed day, to have been elected to the said Legislative Council by that constituency as so altered.

PART IV

HIGH COURTS

8. Extension of jurisdiction of, and transfer of proceedings to, High Court of Punjab and Haryana.—(*1*) Except as hereinafter provided—

(*a*) the jurisdiction of the High Court of Punjab and Haryana shall, as from the appointed day, extend to the territories transferred by this Act from the State of Uttar Pradesh to the State of Haryana; and

(*b*) the High Court of Judicature at Allahabad shall, as from that day, have no jurisdiction in respect of the said territories.

(*2*) Such proceedings pending in the High Court of Judicature at Allahabad immediately before the appointed day as are certified by the Chief Justice of that High Court, having regard to the place of accrual of the cause of action and other circumstances, to be proceedings which ought to be heard and decided by the High Court of Punjab and Haryana shall, as soon as may be after such certification, be transferred to the High Court of Punjab and Haryana.

(*3*) Notwithstanding anything contained in sub-sections (*1*) and (*2*), but save as hereinafter provided, the High Court of Judicature at Allahabad shall have, and the High Court of Punjab and Haryana shall not have, jurisdiction to entertain, hear or dispose of appeals, applications for leave to appeal to the Supreme Court, applications for review and other proceedings, where any such proceedings seek any relief in respect of any order passed by the High Court of Judicature at Allahabad before the appointed day:

Provided that if, after such proceedings have been entertained by the High Court of Judicature at Allahabad, it appears to the Chief Justice of that High Court that they ought to be transferred to the High Court of Punjab and Haryana, he shall order that they shall be so transferred and such proceedings shall thereupon be transferred accordingly.

(*4*) Any order made by the High Court of Judicature at Allahabad—

(*a*) before the appointed day in any proceedings transferred to the High Court of Punjab and Haryana by virtue of sub-section (*2*), or

(*b*) in any proceedings with respect to which the High Court of Judicature at Allahabad retains jurisdiction by virtue of sub-section (*3*),

shall, for all purposes, have effect not only as an order of the High Court of Judicature at Allahabad, but also as an order made by the High Court of Punjab and Haryana.

(*5*) Subject to any rule made or direction given by the High Court of Punjab and Haryana, any such person who immediately before the appointed day is an advocate entitled to practise in the High Court of Judicature at Allahabad as may be specified in this behalf by the Chief Justice of the High Court of Punjab and Haryana having regard to the transfer of territories from the State of Uttar Pradesh to the State of Haryana, shall be recognised as an advocate entitled to practise in the High Court of Punjab and Haryana.

9. Extension of jurisdiction of, and transfer of proceedings to, High Court at Allahabad.—(*1*) Except as hereinafter provided—

(*a*) the jurisdiction of the High Court of Judicature at Allahabad shall, as from the appointed day, extend to the territories transferred by this Act from the State of Haryana to the State of Uttar Pradesh; and

(*b*) the High Court of Punjab and Haryana shall, as from that day, have no jurisdiction in respect of the said territories.

(*2*) Such proceedings pending in the High Court of Punjab and Haryana immediately before the appointed day as are certified by the Chief Justice of that High Court, having regard to the place of accrual of the cause of action and other circumstances, to be proceedings which ought to be heard and decided by the High Court of Judicature at Allahabad shall, as soon as may be after such certification, be transferred to the High Court of Judicature at Allahabad.

(*3*) Notwithstanding anything contained in sub-sections (*1*) and (*2*), but save as hereinafter provided, the High Court of Punjab and Haryana shall have, and the High Court of Judicature at Allahabad shall not have, jurisdiction to entertain, hear or dispose of appeals, applications for leave to appeal to the Supreme Court, applications for review and other proceedings, where any such proceedings seek any relief in respect of any order passed by the High Court of Punjab and Haryana before the appointed day:

Provided that if, after such proceedings have been entertained by the High Court of Punjab and Haryana, it appears to the Chief Justice of that High Court that they ought to be transferred to the High Court of Judicature at Allahabad, he shall order that they shall be so transferred and such proceedings shall thereupon be transferred accordingly.

(*4*) Any order made by the High Court of Punjab and Haryana—

(*a*) before the appointed day in any proceedings transferred to the High Court of Judicature at Allahabad by virtue of sub-section (*2*); or

(*b*) in any proceedings with respect to which the High Court of Punjab and Haryana retains jurisdiction by virtue of sub-section (*3*),

shall, for all purposes, have effect not only as an order of the High Court of Punjab and Haryana, but also as an order made by the High Court of Judicature at Allahabad.

(*5*) Subject to any rule made or direction given by the High Court of Judicature at Allahabad, any such person who immediately before the appointed day is an advocate entitled to practise in the High Court of Punjab and Haryana as may be specified in this behalf by the Chief Justice of the High Court of Judicature at Allahabad having regard to the transfer of territories from the State of Haryana to the State of Uttar Pradesh shall be recognised as an advocate entitled to practise in the High Court of Judicature at Allahabad.

10. Right to appear in any proceedings transferred under section 8 or section 9.—Any person who immediately before the appointed day is an advocate entitled to practise in the High Court of Punjab and Haryana or the High Court of Judicature at Allahabad and was authorised to appear in any proceedings transferred under section 8 or section 9 shall have the right to appear in the High Court to which the proceedings have been transferred in relation to those proceedings.

11. Interpretation.—For the purposes of sections 8 and 9,—

(*a*) proceedings shall be deemed to be pending in the High Court of Punjab and Haryana or the High Court of Judicature at Allahabad until that Court has disposed of all issues between the parties, including any issue with respect to the taxation of the costs of the proceedings and shall include appeals, applications for leave to appeal to the Supreme Court, applications for review, petitions for revision and petitions for writs;

(*b*) references to the High Court of Punjab and Haryana or the High Court of Judicature at Allahabad shall be construed as including references to a Judge or division court thereof, and references to an order made by a court or a Judge shall be construed as including references to a sentence, judgment or decree passed or made by that court or Judge.

PART V

AUTHORISATION OF EXPENDITURE

12. Appropriation of moneys for expenditure in transferred territories under existing appropriation Acts.—(*1*) As from the appointed day, any Act passed by the Legislature of the State of Haryana or Uttar Pradesh before that day for the appropriation of any moneys out of the Consolidated Fund of the State to meet any expenditure in respect of any part of the financial year in which the appointed day falls shall have effect also in relation to the territories transferred to that State by the provisions of Part II and it shall be lawful for the State Government to spend any amount on any service in those territories out of the amount authorised by such Act to be expended for that service during the financial year in that State.

(*2*) The Governor of Haryana or of Uttar Pradesh may, after the appointed day, authorise such expenditure from the Consolidated Fund of the State as he deems necessary for any purpose or service in the territories transferred to that State for a period of not more than six months beginning with the appointed day pending the sanction of such expenditure by the Legislature of the State:

Provided that no such authorisation shall be made so as to have effect for any period after the end of the financial year in which the appointed day falls.

13. Reports relating to accounts of Haryana and Uttar Pradesh.—The reports of the Comptroller and Auditor-General of India referred to in clause (2) of article 151 of the Constitution relating to the accounts of the State of Haryana or Uttar Pradesh in respect of any financial year ending before the appointed day shall be submitted to the Governor of each of the States of Haryana and Uttar Pradesh who shall cause them to be laid before the Legislature of the State.

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PART VI

APPORTIONMENT OF ASSETS AND LIABILITIES

14. Land and goods.—(*1*) Subject to the other provisions of this Part, all land and all stores, articles and other goods belonging to the State of Haryana or Uttar Pradesh in the transferred territories shall, as from the appointed day, pass to the State to which the territories are transferred.

(*2*) In this section, the expression "land" includes immovable property of every kind and any rights in or over such property.

15. Arrears of taxes.—The right of the State of Haryana or Uttar Pradesh to recover arrears of any tax or duty on property situate in the transferred territories, including land revenue, or to recover arrears of any other tax or duty in any case where the place of assessment of that tax or duty is in the transferred territories shall belong to the State to which the territories are transferred.

16. Right to recover loans and advances.—The right to recover any loans or advances made before the appointed day by the State of Haryana or Uttar Pradesh to any local body, society, agriculturist, or other person in the transferred territories shall belong to the State to which the territories are transferred.

17. Refund of taxes collected in excess.—The liability of the State of Haryana or Uttar Pradesh to refund any tax or duty on property situate in the transferred territories including land revenue, collected in excess shall be the liability of the State to which the territories are transferred, and the liability of the State of Haryana or Uttar Pradesh to refund any other tax or duty collected in excess in any case where the place of assessment of the tax or duty is in the transferred territories shall also be the liability of the State to which the territories are transferred.

18. Deposits.—The liability of the State of Haryana or Uttar Pradesh in respect of any civil deposit or local fund deposit made in the transferred territories shall, as from the appointed day, be the liability of the State to which the territories are transferred.

19. Contracts.—(*1*) Where, before the appointed day, the State of Haryana or Uttar Pradesh has made any contract in the exercise of its executive power for any purposes of the State, that contract shall be deemed to have been made in the exercise of the executive power—

(*a*) if such purposes are, as from that day, purposes relatable exclusively to the transferred territories, of the State to which the territories are transferred; and

(*b*) in any other case, of the State which made the contract, and all rights and liabilities which have accrued, or may accrue, under any such contract shall, to the extent to which they are rights or liabilities of the State which made the contract, be the rights or liabilities of the State specified in clause (*a*) or clause (*b*) above.

(*2*) For the purposes of this section, there shall be deemed to be included in the liabilities which have accrued or may accrue under any contract—

(*a*) any liability to satisfy an order or award made by any court or other tribunal in proceedings relating to the contract; and

(*b*) any liability in respect of expenses incurred in or in connection with any such proceedings.

(*3*) This section shall have effect subject to the other provisions of this Part relating to the apportionment of liabilities in respect of loans, guarantees and other financial obligations.

20. Liability in respect of actionable wrong.—Where, immediately before the appointed day, the State of Haryana or Uttar Pradesh is subject to any liability in respect of an actionable wrong, other than breach of contract, that liability shall,—

(*a*) if the cause of action arose wholly within the transferred territories, be a liability of the State to which the territories are transferred; and

(*b*) in any other case, continue to be a liability of the State which, immediately before that day, was subject to such liability.

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21. Liability as guarantor of co-operative societies.—Where, immediately before the appointed day, the State of Haryana or Uttar Pradesh is liable as guarantor in respect of any liability of a registered co-operative society, that liability shall,—

(*a*) if the area of the society's operations is limited to the transferred territories, be a liability of the State to which the territories are transferred; and

(*b*) in any other case, continue to be a liability of the State which, immediately before that day, was subject to such liability.

22. Items in suspense.—If any item in suspense is ultimately found to affect an asset or liability of the nature referred to in any of the foregoing provisions of this Part, it shall be dealt with in accordance with that provision.

23. Apportionment of assets or liabilities by agreement.—Where the States of Haryana and Uttar Pradesh agree that the benefit or burden of any particular asset or liability should be apportioned between them in a manner other than that provided for in the foregoing provisions of this Part, then, notwithstanding anything contained therein, the benefit or burden of that asset or liability shall be apportioned in the manner agreed upon.

24. Power of Central Government to order allocation or adjustment in certain cases.—Where, by virtue of any of the provisions of this Part, either of the States of Haryana or Uttar Pradesh becomes entitled to any property or obtains any benefits or becomes subject to any liability, and the Central Government, on a reference made within a period of three years from the appointed day by either of the States, is of opinion that it is just and equitable that that property or those benefits should be transferred to, or shared with, the other State or that a contribution towards that liability should be made by the other State, the said property or benefits shall be allocated in such manner between the two States, or the other State shall make to the State subject to the liability such contribution in respect thereof, as the Central Government may, after consultation with the two State Governments, by order, determine.

25. Expenditure to be charged on the Consolidated Fund.—All sums payable by either the State of Haryana or Uttar Pradesh to the other State by virtue of the provisions of this Part shall be charged on the Consolidated Fund of the State by which such sums are payable.

PART VII

LEGAL AND MISCELLANEOUS PROVISIONS

26. State Financial Corporations and State Electricity Boards.—As from the appointed day,—

(*a*) the Financial Corporations constituted under the State Financial Corporations Act, 1951 (63 of 1951), for the States of Haryana and Uttar Pradesh; and

(*b*) the State Electricity Boards constituted under the Electricity (Supply) Act, 1948 (54 of 1948), for the said States,

shall be deemed to have been constituted for those States with their areas as altered by the provisions of section 4.

27. Territorial extent of laws.—The provisions of section 4 shall not be deemed to have effected any change in the territories to which any law in force immediately before the appointed day extends or applies, and territorial references in any such law to the State of Haryana or Uttar Pradesh shall, until otherwise provided by a competent Legislature or other competent authority, be construed as meaning the territories within that State immediately before the appointed day.

28. Power to adapt laws.—For the purpose of facilitating the application of any law in relation to the State of Haryana or Uttar Pradesh, the appropriate Government may, before the expiration of two years from the appointed day, by order, make such adaptations and modifications of the law, whether by way of repeal or amendment as may be necessary or expedient, and thereupon every such law shall have effect subject to the adaptations or modifications so made until altered, repealed or amended by a competent Legislature or other competent authority.

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Explanation.—In this section, the expression "appropriate Government" means as respects any law relating to a matter enumerated in the Union List, the Central Government, and as respects any other law, the State Government.

29. Power to construe laws.—Notwithstanding that no provision or insufficient provision has been made for the adaptation of a law made before the appointed day, any court, tribunal or authority, required or empowered to enforce such law may, for the purpose of facilitating its application in relation to the State of Haryana or Uttar Pradesh, construe the law in such manner, without affecting the substance, as may be necessary or proper in regard to the matter before the court, tribunal or authority.

30. Legal proceedings.—Where, immediately before the appointed day, the State of Haryana or Uttar Pradesh is a party to any legal proceedings with respect to any property, rights or liabilities transferred to the other State under this Act, the other State shall be deemed to be substituted for the State from which such property, rights or liabilities are transferred as a party to those proceedings, or added as a party thereto, as the case may be, and the proceedings may continue accordingly.

31. Transfer of pending proceedings.—(*1*) Every proceeding pending immediately before the appointed day before a court (other than a High Court), tribunal, authority or officer in any area which on that day falls within the State of Haryana or Uttar Pradesh shall, if it is a proceeding/relatable exclusively to any part of the territories which as from that day are the territories of the other State, stand transferred to the corresponding court, tribunal, authority or officer in the other State.

(*2*) If any question arises as to whether any proceeding should stand transferred under sub-section (*1*), it shall be referred to the High Court having jurisdiction in respect of the area in which the court, tribunal, authority or officer before which, or before whom, such proceeding is pending on the appointed day, is functioning, and the decision of that High Court shall be final.

(*3*) In this section,—

(*a*) "proceeding" includes any suit, case or appeal; and

(*b*) "corresponding court, tribunal, authority or officer" in a State means—

(*i*) the court, tribunal, authority or officer in which, or before whom, the proceeding would have lain if the proceeding had been instituted after the appointed day, or

(*ii*) in case of doubt, such court, tribunal, authority or officer in that State as may be determined after the appointed day by the Government of that State, or before the appointed day by the Government of the other State, to be the corresponding court, tribunal, authority or officer.

32. Construction of boundary pillars, etc.—(*1*) It shall be lawful for the State Government which is responsible for the construction of any boundary pillar under sub-section (*3*) of section 3 to cause such pillar to be constructed and maintained and no suit, prosecution or other legal proceeding shall lie against the State Government or any of its officers for anything in good faith done or intended to be done under this section.

(*2*) The boundary pillars shall be inspected jointly by the officers of the State Governments of Haryana and Uttar Pradesh in accordance with such rules as the Central Government may make in this behalf.

(*3*) Whoever wilfully removes or injures any boundary pillars shall be punishable with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

(*4*) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), an offence under sub-section (*3*) may be inquired into and tried by a court in either of the States of Haryana and Uttar Pradesh.

33. Validity of demarcation done before commencement of Act.—All things done and all steps taken before the commencement of this Act in connection with the demarcation of the fixed boundaries shall, in so far as they are in conformity with the provisions of sub-sections (*2*) and (*3*) of section 3, be deemed to have been done in accordance with law.

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34. Effect of provisions inconsistent with other laws.—The provisions of this Act shall have effect notwithstanding any law, custom or usage which is inconsistent therewith.

35. Power to remove difficulties.—(1) If any difficulty arises in giving effect to the provisions of this Act, the President may, by notified order, do anything, not inconsistent with such provisions which appears to him to be necessary or expedient for the purpose of removing the difficulty.

(*2*) Every order made under this section shall be laid before each House of Parliament.

36. Power to make rules.—(*1*) The Central Government may, by notification in the Official Gazette, make rules to give effect to the provisions of this Act.

(*2*) Every rule made by the Central Government under this section shall be laid, as soon as may be after it is made, before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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[*See* section 3 (*2*)]

Description of the fixed boundaries

1. The fixed boundary between the Karnal and Sonepat districts of Haryana on the one side and the Saharanpur, Muzaffarnagar and Meerut districts of Uttar Pradesh on the other side shall be the present deep stream line.

2. (*1*) The fixed boundary between the Gurgaon district of Haryana on the one side and the Bulandshahr and Aligarh districts of Uttar Pradesh on the other side shall commence from the point where the present deep stream line crosses the north-west boundary of BASANTPUR and proceed along the said boundary up to the point where it crosses the north bank of the river Yamuna as ascertained at the 1971-72 river survey conducted by the Survey of India.

(*2*) It shall then proceed along the said north bank up to the point where it meets the boundary between BASANTPUR and SALARPUR; thence along the northern and eastern boundaries of SALARPUR, the eastern boundary of ASALATPUR, the north-eastern boundary of DADSIA, the northern and north-eastern boundaries of KIRAWLI, the northern boundary of LALPUR, the northern and eastern boundaries of MAHABATPUR, the eastern boundary of MUAZZAMABAD, the eastern boundary of BHASKOLA, the eastern and northern boundaries of RAJPUR KALAN including CHAK PHULERA, the northern and eastern boundaries of SHIKARGAH, the northern and eastern boundaries of AMINPUR, the eastern boundary of CHIRSI, the eastern boundary of AKBARPUR, the eastern boundary of MOZAMABAD-MAZRA-SHEIKHPUR, the eastern boundary of SHEIKHPUR, the eastern boundary of MANJHAWLI, the eastern boundary of GARHI BEGAMPUR, the south-eastern boundary of DALELGARH, the eastern boundary of NANGLA-MAZRA-CHANDPUR, the northern and eastern boundaries of SHAHJAHANPUR, the eastern boundary of LATIFPUR, the eastern boundary of PARASRAMPUR *alias* DULEHPUR, the eastern boundary of MAKANPUR, the north-eastern boundary of WALIPUR, the western, northern and eastern boundaries of SHEIKHPUR, the northern and the north-eastern boundaries of BEHRAMPUR, and the north-western boundary of NANGLIA up to the point where it meets the present deep stream line.

(*3*) From this point, it shall proceed along the present deep stream line following the boundary on Uttar Pradesh side of NANGLIA, JHUPPA, BAGHPUR KHALAN, BAGHPUR KHURD, SOLRAH, BHOLRA, DOSTPUR, GURWARI AND CHANDHAT up to the junction of the old main stream of the river Yamuna and the channel or branch of the river commonly known as the Zair Nala, and thence along the present deep stream line up to the southern boundary of MAHOLI.

Explanation.—In this paragraph,—

(*a*) any reference to the boundary of a village named in sub-paragraphs (*1*) and (*2*) shall be construed as a reference to the boundary of that village as ascertained and mapped at the Settlement of Gurgaon district completed in 1943;

(*b*) the references to the present deep stream line at the end of sub-paragraph (*2*) and the beginning of sub-paragraph (*3*) shall be construed as references to the present deep stream line pertaining to the old main stream of the river Yamuna.